

CCRB INVESTIGATIVE RECOMMENDATION

Investigator Assigned: [REDACTED]	Team: Team # 6	CCRB Case # : 201305568	☒ Force ☐ Discourtesy ☒ Abuse ☐ O.L. ☒ Injury
Date/Time of Incident: Wed, 05/29/2013 08:00 PM	Location of Incident: South 11th Street and West Sanford Boulevard in Mt. Vernon and the 47th		Pct. of Occurrence: 47 Date S.O.L. Expires: 11/29/2014
Date/Time C/V Reported: Sat, 06/22/2013 08:57 PM	C/V Reported At: CCRB	How C/V Reported: Call Processing System	Date/Time Received at CCRB: Sat, 06/22/2013 08:57 PM

Complainant/Victim	Type	Home Address
1. [REDACTED]	Comp/Victim	[REDACTED]
2. [REDACTED]	Complainant	[REDACTED]

Witness(es)	Home Address
1. [REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Nunez	18750	[REDACTED]	047 PCT
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

Witness Officer(s)	Shield	TaxID	Command
1. [REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

Officer(s)	Allegation	Recommendation
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
E. POM Daniel Nunez	Abuse of Authority: At the 47th Precinct stationhouse, PO Daniel Nunez did not obtain medical treatment for [REDACTED]	E. Unsubstantiated
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Case Summary

██████████ filed this complaint with the CCRB on behalf of ██████████ on June 22, 2013 via the call processing system (encl. 5A-5B). Mr. ██████████ filed a duplicate complaint with IAB on June 25, 2013, generating original log number 2013-27327 (encl. 6A-6B).

At approximately 8 p.m. on May 29, 2013, Mr. [REDACTED] and [REDACTED] were stopped in their vehicle in the vicinity of [REDACTED]. The following allegations resulted:

- [illegible]

- **Allegation E – Abuse of Authority: At the 47th Precinct stationhouse, PO Daniel Nunez did not obtain medical treatment for [REDACTED]** The investigation was unable to determine whether PO Nunez denied medical treatment to Mr. [REDACTED]. It is therefore recommended that **Allegation E be unsubstantiated.**

- [illegible]

- _____

Results of Investigation

Civilian Statements

Complainant/Victim:

- [REDACTED]

Medical Records Statement (encl. 21A-21AA)

[REDACTED]

IAB Statement (encl. 6A-6B)

Mr. [REDACTED] provided a statement to IAB on June 25, 2014. He stated that he was arrested, beaten up, run over, and denied medical attention by officers from the 47th Precinct in a 2008 Chevy Impala, Plate # EFP-4768. He received a strain to his right knee from being hit by the police vehicle and scratches on his arms from being placed on the ground. Upon his release, he went to White Plains Hospital for treatment.

CCRB Statements

Mr. [REDACTED] provided statements to the CCRB during his initial complaint on May 29, 2013 (encl. 5A-5B) and in person on July 30, 2013 (encl. 7A-7C). His statements were generally consistent and are summarized below with any inconsistencies noted.

At approximately 6 p.m. on May 29, 2013, Mr. [REDACTED] posted a Facebook status asking for someone to drive him from his mother's house, located at [REDACTED], to his father's house, located on [REDACTED], near the intersection of [REDACTED]. A friend of Mr. [REDACTED] who he knew only by the name [REDACTED] and who was identified by the investigations as [REDACTED] responded to his post and said he would pick him up. Mr. [REDACTED] arrived at Mr. [REDACTED] mother's house a few minutes later, around 8 p.m., in a dark gray Nissan Maxima sports edition four door sedan. Mr. [REDACTED] got in the vehicle. At the time, Mr. [REDACTED] was wearing a red V-neck t-shirt, [REDACTED] and green camouflage cargo pants, and white sneakers.

Mr. [REDACTED] drove south on [REDACTED] in the direction of [REDACTED]. As they were driving, Mr. [REDACTED] observed two unmarked vehicles make U-turns and begin following Mr. [REDACTED]. Both of the vehicles were sedans, one gray and one black. Mr. [REDACTED] did not indicate how long they had been driving when he made this observation.

Mr. [REDACTED] eventually turned onto [REDACTED] a dead-end street, from [REDACTED]. He was planning to drive to the end of the block, make a U-turn, and then drop Mr. [REDACTED] off in front of his father's house. However, before getting to the end of the street, the two unmarked vehicles turned on their flashing lights. Mr. [REDACTED] initially sped up. He then stopped the vehicle. Mr. [REDACTED] asked him what was going on, and he said he did not have a driver's license. Mr. [REDACTED] then got out of the vehicle and ran towards the dead-end. The gray unmarked vehicle stopped. Three plainclothes officers, none of whom Mr. [REDACTED] could describe, got out and chased Mr. [REDACTED]. Mr. [REDACTED] did not mention during his CCRB interview whether he saw Mr. [REDACTED] commit any traffic infractions. However, he indicated that he did not know what was going on at the time.

Mr. [REDACTED] remained in the idling vehicle for approximately 10 to 15 seconds. He then got out of the vehicle, with the intention of finding out what was going on, and stood in the middle of the street. Mr. [REDACTED] was facing the black unmarked vehicle, which was moving towards him at the time. He raised his hands to his head and told the car to stop. However, it kept driving towards Mr. [REDACTED]. Mr. [REDACTED] was standing still at the time. The driver of the vehicle sped up and struck Mr. [REDACTED] with the vehicle. The front right bumper struck Mr. [REDACTED] right leg. Mr. [REDACTED] did not indicate exactly what part of his leg was struck. Mr. [REDACTED] leg bent, causing

his foot to drag across the ground and get run over by the wheel. Mr. [REDACTED] then fell to the ground on his left side. Mr. [REDACTED] was outside the vehicle for approximately seven or eight seconds before he was hit.

After Mr. [REDACTED] fell to the ground, two officers exited the vehicle. Mr. [REDACTED] provided descriptions of both officers. One, [REDACTED] was identified by the investigation as Sgt. [REDACTED]. The other, a [REDACTED] was identified by the investigation as PO [REDACTED]. Although Mr. [REDACTED] believed that Sgt. [REDACTED] exited from the driver side and PO [REDACTED] exited from the passenger side, the investigation determined that PO [REDACTED] was driving.

Sgt. [REDACTED] and PO [REDACTED] yelled at Mr. [REDACTED] to stay on the ground. Mr. [REDACTED] was still on his side. Sgt. [REDACTED] then handcuffed him. Mr. [REDACTED] did not move, but he repeatedly yelled that his leg was in pain. Sgt. [REDACTED] pushed Mr. [REDACTED] face onto the ground with his leg. Mr. [REDACTED] did not give a more specific account of this force. Sgt. [REDACTED] then kicked Mr. [REDACTED] twice in the chest and punched him three times, once in the right shoulder and neck, once behind his right ear, and once near his right temple. Mr. [REDACTED] was in handcuffs at the time. He was not moving his body. All he was doing was asking why he was being kicked and saying that his leg was still in pain.

As Sgt. [REDACTED] struck Mr. [REDACTED] he made statements such as, "The car is stolen," "We're gonna lock you up," "You think you guys are slick," and, "Just stay right there." Mr. [REDACTED] had no knowledge that the car was stolen since Mr. [REDACTED] had a key to the ignition, the vehicle had license plates, and the registration on the windshield was intact. There were no signs that the car was stolen.

Sgt. [REDACTED] said he was going to see what was happening with Mr. [REDACTED]. He walked away. PO [REDACTED] remained there. He made a phone call during which he recited the license plate on Mr. [REDACTED] vehicle. He then sat Mr. [REDACTED] up and stepped on his handcuffs, which caused pain and lasting scars to Mr. [REDACTED] wrists. Mr. [REDACTED] believed that PO [REDACTED] intentionally stepped on him, though he was not sure.

Mr. [REDACTED] was placed in the black unmarked vehicle. PO [REDACTED] got into the driver seat, and Sgt. [REDACTED] sat in the back with Mr. [REDACTED]. Mr. [REDACTED] told Sgt. [REDACTED] that his leg hurt and he wanted medical attention. Sgt. [REDACTED] said that he had to wait until they got to the stationhouse.

A short time later, Mr. [REDACTED] was placed in the unmarked gray vehicle. The other three officers got inside. This was the first time that Mr. [REDACTED] saw Mr. [REDACTED] since he started running. Mr. [REDACTED] sat there for approximately eight minutes. Meanwhile, PO [REDACTED] searched Mr. [REDACTED] vehicle. Mr. [REDACTED] did not see him remove anything.

Mr. [REDACTED] was transported to the 47th Precinct stationhouse. On the way, Sgt. [REDACTED] asked him "where the guns were." Mr. [REDACTED] explained that there were no guns, drugs, or anything else illegal inside the vehicle. Sgt. [REDACTED] asked Mr. [REDACTED] if he could help him look for guns, but Mr. [REDACTED] told Sgt. [REDACTED] that he did not know where any guns were.

When Mr. [REDACTED] arrived at the stationhouse, his arrest was processed by another unidentified [REDACTED] officer who was not on scene. Mr. [REDACTED] described this officer as [REDACTED]. This officer was identified through the investigation as PO Daniel Nunez. Mr. [REDACTED] asked PO Nunez for medical attention, but PO Nunez told him he had to wait until he went to Central Booking.

Mr. [REDACTED] and Mr. [REDACTED] were taken to Central Booking around 1 a.m. or 2 a.m. on May 30, 2013. Neither of them saw a judge, and they were released without paperwork. An ADA at Central Booking told Mr. [REDACTED] that he was being released because he had not been driving. Mr. [REDACTED] was not seen by any medical personnel while in custody. After he was released, he

went to White Plains Hospital with his mother.

Photographs (encl. 7F-7J)

Witness:

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Telephone Statement

Mr. [REDACTED] provided a telephone statement to the CCRB on January 8, 2014 (encl. 8A).

Mr. [REDACTED] stated that he and Mr. [REDACTED] were stopped by officers in his vehicle. He said they were stopped for no reason, though he admitted that he did not have a license and that the vehicle belonged to his friend. Once they were stopped, Mr. [REDACTED] got out of the car and walked away. At this time, he saw a police vehicle hit Mr. [REDACTED]. He did not elaborate further. Two officers then slammed Mr. [REDACTED] on the ground and arrested both of them.

NYPD Statements:

Subject Officer: PO DANIEL NUNEZ

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- *PO Nunez worked from 1 p.m. on May 29, 2013 until 8:35 p.m. on May 30, 2013. He was assigned to anti-crime with PO [REDACTED] and PO [REDACTED]. He was dressed in plainclothes and worked in vehicle number 866, an unmarked gray Impala.*

Complaint Report (encl. 9A-9C)

At approximately 7:55 p.m. on May 29, 2013, the defendant was observed operating a blue Nissan Maxima northbound on [REDACTED] with only one New York State license plate (# [REDACTED]). After running the license plate it came back to a Dodge Caravan. He proceeded to pull the vehicle over. The defendant refused to pull over and accelerated at a high rate of speed, committing various traffic infractions. He then went into a dead-end street and ran out of the vehicle. PO Nunez chased and apprehended the perpetrators. The driver stated that they had stolen the vehicle. Two individuals were arrested in regards, [REDACTED] and [REDACTED]. Their arrests were sealed. The victim is listed as [REDACTED] of [REDACTED] in the Bronx.

Arrest Report ([REDACTED] (encl. 9D-9F)

Memo Book (encl. 9G-9H)

At 6 p.m., PO Nunez had a car stop that led to a pursuit. Two individuals were arrested for

Grand Larceny Auto in regards.

CCRB Statement

PO Nunez was interviewed at the CCRB on June 18, 2014 (encl. 9I-9K).

At approximately 6 p.m. on May 29, 2013, PO Nunez was inside of his vehicle traveling northbound on [REDACTED] in the Bronx. There was another anti-crime vehicle in front of PO Nunez's. Between the two cars, the following officers were working: PO Nunez, Sgt. [REDACTED] PO [REDACTED] PO [REDACTED] and PO [REDACTED]. Although PO Nunez initially stated that he was working with PO [REDACTED] and Det. [REDACTED] he later said that PO [REDACTED] may have been driving his vehicle.

While they were driving, a civilian's vehicle ran a stop sign. The other anti-crime vehicle activated its lights and sirens, but the civilian's vehicle took off at a high rate of speed, disobeying multiple traffic devices. Both of the anti-crime vehicles gave chase. In that time, an officer from the other anti-crime vehicle ran the plates and saw that they did not match the car. Officers from that vehicle notified PO Nunez over the radio that the vehicle might be stolen.

The civilian's vehicle came to a stop approximately two blocks from where the chase began, almost crashing into a home. Both anti-crime vehicles also stopped. The driver of the civilian's vehicle, identified by the investigation as Mr. [REDACTED] then got out of the car and took off running. PO Nunez got out of his car and gave chase. PO [REDACTED] ran with him. When he ran by the civilian's vehicle, the passenger, identified by the investigation as Mr. [REDACTED] remained seated.

About two blocks from where the vehicles had stopped, Mr. [REDACTED] came out from behind a building with his hands in the air. PO Nunez handcuffed him without incident. He then led Mr. [REDACTED] back to the vehicles.

When PO Nunez returned, Mr. [REDACTED] was handcuffed in the street. PO Nunez did not recall if he was standing or on the ground. PO Nunez did not observe any injuries on him, and Mr. [REDACTED] did not complain of any injuries. PO Nunez never saw any officer punch or kick Mr. [REDACTED]. He never learned that any physical force was used against Mr. [REDACTED] during the arrest. He never learned that Mr. [REDACTED] had been struck with a police vehicle. Mr. [REDACTED] had no visible signs that he had been struck. Mr. [REDACTED] was not verbally combative and was not doing anything with his body.

Mr. [REDACTED] told the officers that the vehicle was not theirs and that they took it from someone. PO Nunez then conducted an inventory search of the vehicle, though he did not document the contents of the vehicle as he did not know who the owner was and had no complainant. None of the documentation for the vehicle was in Mr. [REDACTED] or Mr. [REDACTED] name.

Mr. [REDACTED] and Mr. [REDACTED] were placed in police vehicles and transported to the 47th Precinct. The civilian's vehicle was also taken there. PO Nunez did not recall who drove it.

Once at the stationhouse, PO Nunez processed the arrests of Mr. [REDACTED] and Mr. [REDACTED]. Neither individual ever complained of any injuries or requested medical attention. He did not observe any injuries on either of them.

The vehicle was eventually returned to the owner, who had left his car at an auto body repair shop. He had gone on vacation, and when he returned to pick up the car, he was told that it had been stolen. The owner was not a relative of Mr. [REDACTED] or Mr. [REDACTED].

Subject Officer: PO [REDACTED]

• [REDACTED]
[REDACTED]
[REDACTED]

[illegible]

[REDACTED]

Subject Officer: SGT. [REDACTED]

- [REDACTED]
- [REDACTED]

Memo Book

[REDACTED]

CCRB Statement

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Witness Officer: PO

[REDACTED]

Memo Book (encl. 12A-12B)

[REDACTED]

CCRB Statement

[REDACTED]

[REDACTED]

Witness Officer: DET. [REDACTED]

- [REDACTED]
- [REDACTED]

Memo Book (encl. 13A-13B)

[REDACTED]

CCRB Statement

[REDACTED]

[REDACTED]

Officers Not Interviewed

[REDACTED]

Medical Records

White Plains Hospital Center (encl. 21A-21AA)

[REDACTED]

NYPD Documents

PO Nunez Photograph (encl. 15F)

[REDACTED]

Command Log (encl. 15P-15AA)

[REDACTED]

Arrest for Incident and Disposition

- [REDACTED]

Status of Civil Proceedings

- [REDACTED]

Civilians Criminal History

- [REDACTED]
- [REDACTED]

Civilian CCRB History

- [REDACTED]

Subject Officers CCRB History

- PO Daniel Nunez has been a member of the service for eight years and there are four substantiated CCRB allegations against him. (encl. 2A).
 - In case # 200610674, a question and/or stop allegation and a search allegation were substantiated against him with charges recommended. He pleaded guilty to both and received a penalty of two vacation days lost for each.
 - In case # 201213751, a stop allegation and a frisk allegation were substantiated against him with command discipline recommended. The NYPD disposition was command discipline, though no penalty was available.
- [REDACTED]

Conclusion

Identification of Subject Officers

- [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Allegations Not Pleaded

- [REDACTED]

Investigative Findings and Recommendations

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[illegible]

[REDACTED]
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[illegible]

[illegible]

[REDACTED]

Team

Invest

Super

Review

9/22/2014
Date

9/22/14
Date

9/22/14
Date

Reviewer:

Title/Signature

Print

Date